

and confer discussion took place but also addressing the parties' competing descriptions of evidence regarding an alleged witness to the accident and to facts relevant to the punitive damages claim. The Court does not consider this evidence in ruling on the demurrer. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, court does not consider "the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. [Citations omitted.]"]; *Williams v. Southern California Gas Co.* (2009) 176 Cal. App. 4th 591, 600 ["[A] court ruling on a general demurrer is not empowered to 'ascertain whether the facts stated [in the complaint] are true or untrue.' [Citation omitted.], " holding trial court could not draw inferences from discovery responses in sustaining a demurrer based on the untruthfulness of the allegations of the complaint]); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 660 [demurrer hearing cannot be turned into contested evidentiary hearing].)

Legal Standards Applicable to A Demurrer and Analysis

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318]; *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 173 ["a demurrer does not admit the plaintiff's contentions nor conclusions of law or fact."].) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.) The Court does not consider evidence except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994.)

To be sustained, a demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) " 'There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294]. . . . "Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof." ' [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 163-164.) A motion to strike is the appropriate mechanism to attack a claim for punitive damages. (*Id.* at 164.)

The demurrer cannot be sustained because it would not dispose of an entire cause of action, only one type of damages (punitive damages) sought in the FAC. The argument that the demurrer is made to the entire complaint because the complaint as a whole does not support a claim for punitive damages misunderstands the applicable law. To sustain a demurrer to the FAC in its entirety would require the Court to find that the FAC fails to allege facts sufficient to state a cause of action against Mr. Mendieta. Defendant does not contend that the FAC fails to state a cause of action but rather than the facts alleged are insufficient to support the prayer for punitive damages, which is not a cause of action. The demurrer is therefore **OVERRULED**.

8. 9:00 AM CASE NUMBER: C24-00851
CASE NAME: DANIEL COSTA VS. FADIA SAADEH
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY: SAADEH, FADIA
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings (“Motion”) filed by defendants Fadia Saadeh, Patrick Ward, Country Equestrians LLC, and Dig This, Inc., (“Defendants”). The Motion argues that the first cause of action (promissory fraud), second cause of action (promissory estoppel), third cause of action (breach of contract), fourth cause of action (good faith improver claim pursuant to Code of Civil Procedure section 871.1), sixth cause of action (Bus. & Prof. Code, § 17200), seventh cause of action (unjust enrichment), eighth cause of action (disgorgement, Bus. & Prof. Code, § 7031, subd. (b)), ninth cause of action (recission), tenth cause of action (claim against contractor and other bonds), and eleventh cause of action (declaratory relief), fail to state facts sufficient to constitute causes of action.

For the reasons set forth below, the hearing on the Motion is continued until **Monday, May 18, 2026, at 9:00 a.m., in Department 34**. The parties shall meet and confer **by April 24, 2026**, and Defendants shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by May 1, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party. . . .” (*Ibid.*) The moving party must then file a declaration with the motion attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings and order further meet and confer efforts to take place. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The Dylan Yale Fukai Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Fukai Decl., ¶¶ 1-4, Exhs. A and B.) The meet and confer letter sent by Defendants’ counsel does not seek to initiate a proper meet and confer, as nowhere does the attorney ask the party whose pleading is being challenged to schedule a call, videoconference, or meeting, or offer available dates to conduct such a conference. (See Fukai Decl., Exh. A [10/06/2025 letter stating, “Please respond no later than October 10, 2025, to indicate whether you will address the deficiencies in the Complaint.”].) Further, the October 21, 2025 email from Plaintiffs’ counsel stated a possible inclination to reduce the number of issues, at least with respect to the unjust enrichment cause of action, but the lack of a proper meet and confer halted any progress on that front. (Fukai Decl., ¶ 4, Exh. B [“I do intend to send a concise written response to your 10/6 letter, but

my response (except perhaps to your objections to the unjust enrichment cause of action) is not going to concede that the other causes of action are deficient.”].)

Sending a meet-and-confer letter to opposing counsel and asking them to let you know whether or not they will amend the complaint does not meet the letter or spirit of the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a). Additionally, if there is a possibility of reducing the number of issues that comes up from written communications alone, it is imperative that the parties pursue that possibility by conducting a proper in person, telephone, or video-conference meet and confer. The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Hoffman and the other named plaintiffs (“Plaintiffs”) filed a Motion for Leave to File First Amended Complaint on January 16, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on April 13, 2026.

The motion is unopposed. A Notice of Non-Opposition was filed on March 30, 2026.

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ARREAGA, GUILLERMO ARMANDO MARTINEZ
TENTATIVE RULING:

The demurrer of Defendants Guillermo Armando Martinez Arreaga, Rafael Antonio Martinez Arreaga, and SRGR Martinez Construction, Inc. to the First Amended Complaint of Plaintiff Amir Saffarian is **SUSTAINED WITH LEAVE TO AMEND.**